

March 13, 2023

The Office of Gov. Spencer J. Cox
350 N. State Street, Suite 200
P.O. Box 142220
Salt Lake City, UT 84114-2220

RE: VETO REQUEST – SB 152

Dear Governor Cox:

We write to respectfully request that you **VETO SB 152**.¹ The bill raises significant First Amendment concerns for Utah minors and businesses alike, and it would also have negative affects on Utah teens by limiting the content and information available to them. By flatly banning *any form of advertising* to Utah minors through their social media accounts, with zero exceptions, SB 152 is overinclusive and therefore unconstitutional.

- **The bill imposes unconstitutional restraints on access to information by Utah minors.** All Americans, including Utah's minors, have a First Amendment right to receive truthful advertising. It is not clear what governmental interest SB 152's total prohibition on advertising to Utah minors purports to advance. Nor can a total ban without exceptions be narrowly tailored to advance any objective.² Simply put, the bill's complete prohibition on advertising violates Utah minors' First Amendment right to receive lawful information.
- **The bill also imposes unconstitutional restraints on the lawful commercial speech of businesses and nonprofits.** SB 152 impinges on the First Amendment rights of businesses and mission-driven nonprofits to communicate their lawful messages. Time and time again, courts have affirmed First Amendment protections for commercial speech such as advertising by making clear that consumers, businesses, and society overall have strong interests in the free flow of commercial information.³ If enacted, SB 152 would prohibit myriad Utah businesses and nonprofits from reaching teenagers with their important messages, including churches and universities.
- **The broad sweep of the bill would limit Utah minors' ability to access important information online.** Outlawing advertising to Utah minors would prevent Utah teenagers from reaching a wealth of information and content that otherwise would be at their fingertips. SB 152 would treat a Utah 7-year-old the same as a 17-year-old. It would limit their ability to access including information about universities, trade programs, military recruitment, job opportunities, cars, apartments, and other resources for their future. It would also restrict them

¹ Utah SB 152 (Gen. Sess. 2023), located [here](#).

² *Central Hudson Gas & Elec. Corp. v. Public Service Commission of New York*, 447 U.S. 557, 564-66 (1980).

³ See, e.g., *Va. Pharmacy Bd. v. Va. Consumer Council*, 425 U.S. 748, 756-57 (1976); *Sorrell et. al. v. IMS Health Inc.*, 564 U.S. 552, 570-71 (2011).



from being active participants in the digital economy, which could have a significant and negative impact on Utah businesses. Shrinking the variety of products, services, content, viewpoints, voices, and information 17-year-olds can reach will not protect them, but instead will ensure they will not have the same experience with the Internet as their contemporaries living in other states.

- **The bill could unintentionally expose Utah minors to harm.** The bill's age-gating requirements could effectively force companies to maintain databases of Utah minors' ages to prevent them from creating or accessing social media accounts. Such an outcome could be an attractive target for a nefarious individual or party to seek information about minors.

While we agree with protecting Utah children and teens online, SB 152 would do the opposite while imposing a severe, unnecessary, and unconstitutional restriction on advertising. We urge you to defend the constitutional rights of Utah businesses and minors, and we encourage you to take steps to ensure Utah teens can continue to participate in the digital economy. We ask you to veto SB 152.

* * *

Thank you for your consideration of this request.

Sincerely,

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